

HEADNOTE

“A request for suspensive effect regarding a decision of the Court of First Instance not to extend the time period provided for in the Rules of Procedure for lodging a written statement of a party (here: a statement of rejoinder) can be admissible.”

COURT

Court of Appeal Luxembourg

PATENT

KEYWORDS

Suspensive effect

PROCEEDINGS

Infringement action

extension of time period to submit a statem...

SUMMARY

The Court of Appeal Luxembourg ruled on an infringement action. According to the headnotes of the decision, a request for suspensive effect can be admissible. This request concerns a Court of First Instance decision refusing to extend procedural deadlines. The deadline in question applied to filing a written statement by a party. In particular, the statement at issue was a statement of rejoinder.